

CHAPTER 15.

An Act to make provision with respect to Organisation for the purpose of Rescue and Aid in the case of Accidents in Mines. [3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Order by
Secretary of
State with
respect to
organisation
for rescue and
aid in the case
of accidents in
mines.

1.—(1) The Secretary of State may by order, made in accordance with this Act, of which notice shall be given in such manner as he may direct, require such provision as he may consider to be necessary to be made at all mines or any class of mines in regard to all or any of the following matters :—

(a) Supply and maintenance of appliances for use in rescue work, and formation and training of rescue brigades :

(b) Supply and maintenance of ambulance appliances and the training of men in ambulance work.

(2) The owner, agent, or manager of a mine shall, in the event of failure to comply with the provisions of any order made under this Act, be liable on summary conviction to a fine not exceeding twenty pounds, and to a further fine not exceeding one pound for every day during which the failure to comply continues after conviction thereof.

Procedure
with respect to
the making of
an order under
the Act.

2.—(1) Before the Secretary of State makes any order under this Act, he shall publish, in such manner as he may think best adapted for informing persons affected, notice of the proposal to make the order, and of the place where copies of the draft order may be obtained, and of the time (which shall not be less than thirty days) within which any objections made with respect to the draft order by or on behalf of persons affected must be sent to the Secretary of State.

(2) Every objection must be in writing and state—

(a) the specific grounds of objection ;

(b) the omissions, additions, or modifications asked for.

(3) The Secretary of State shall consider any objection made by or on behalf of any persons appearing to him to be affected which is sent to him within the required time, and he may, if he thinks fit, amend the draft order, and the foregoing provisions shall apply to the amended draft in like manner as they apply to the original draft.

(4) If, after the publication of the notice with respect to any such draft order (whether an original or amended draft), any general objection as herein-after defined is made within the required time with respect to the draft and not withdrawn, the order shall not be made by the Secretary of State until that objection has been referred to a referee agreed upon between

the Secretary of State and the objectors or, in default of agreement, appointed by the Lord Chief Justice of England.

If on any such reference the referee considers that the draft order should be varied to meet the objection, he shall recommend any variation which he considers necessary or expedient, and effect shall be given to those recommendations in the order, if made.

(5) If the Secretary of State considers that any objection, though not a general objection, is of such a character that it is desirable to refer it to a referee, he may so refer it, and in that case the foregoing provisions shall apply as in the case of a general objection.

(6) For the purposes of this section a "general objection" means an objection made either by or on behalf of owners of mines employing not less than one-third of the total number of men employed at the mines affected by the proposed order, or, if the order contains different provisions for different classes of mines, of the total number of men employed in any such class of mines, or by or on behalf of not less than one-third of the total number of men so employed.

The number of men employed shall be calculated in accordance with the returns for the last preceding year sent by owners of mines to the inspectors in pursuance of section thirty-three of the Coal Mines Regulation Act, 1887, and section one of the Metalliferous Mines Regulation Act, 1875.

50 & 51 Vict.
c. 58.
38 & 39 Vict.
c. 39.

(7) The Secretary of State may make regulations as to the procedure and costs on a reference under this section, and those regulations shall have effect accordingly.

(8) An order under this Act may be revoked, altered, or added to by an order made in like manner and subject to the same provisions as the original order.

3.—(1) The expression "mine" means any mine to which the Coal Mines Regulation Acts, 1887 to 1908, or the Metalliferous Mines Regulation Acts, 1872 and 1875, apply.

Application:
and short title.

(2) This Act may be cited as the Mines Accidents (Rescue and Aid) Act, 1910.

CHAPTER 16.

An Act to vest in the Commissioners of Works, freed from ecclesiastical uses, the Chapel comprised in the buildings situate in the metropolitan borough of Chelsea, formerly occupied by the Duke of York's Royal Military School.
[3rd August 1910.]

WHEREAS the buildings situate in or near the King's Road, in the metropolitan borough of Chelsea, formerly occupied by the Royal Military Asylum (now called the Duke of York's